

V.

My Brother HARLAN's concurring opinion deserves separate consideration. It begins by asking what is its essential question: Why would the Forty-second Congress, which clearly provided tort relief in the federal courts for violations of constitutional rights by acts of a policeman acting pursuant to state authority, not also have provided the same relief for violations of constitutional rights by a policeman acting in violation of state authority? What, it inquires, would cause a Congress to distinguish between the two situations? Examining a first possible differentiating factor—the differing degrees of adequacy of protection of person and property already available in the state courts—it reasons that this could not have been significant in view of Congress' purpose in 1871, for that purpose was not to enact a statute having “merely a jurisdictional function, shifting the load of federal supervision from the Supreme Court to the lower courts and providing a federal tribunal for fact findings.”

see *California Water Service Co. v. City of Redding*, 304 U. S. 252; *Massachusetts Universalist Convention v. Hildreth & Rogers Co.*, 183 F. 2d 497 (C. A. 1st Cir.); *Robinson v. Stanley Home Prods. Inc.*, 272 F. 2d 601 (C. A. 1st Cir.). Petitioners in this case have never throughout the litigation below raised the issue of the possible application of the *Hurn* rule to these circumstances, nor is that issue among the questions presented in their petition for certiorari here. Under our Rule 23, subpar. 1 (c) it is not now, therefore, before the Court, and there is no intention here to intimate any opinion on the novel problem of federal jurisdiction of state-law claims “pendent” to such a case as this. Suffice it to say that whatever application *Hurn* may have to these situations, its application will entail a very different level of federal judicial involvement with the adjudication of rights between individuals in a State than would the interpretation of § 1979 which petitioners urge. Whatever incursion into areas of conventionally exclusive state-court competence jurisdiction “pendent” to a § 1979 claim might entail would touch considerations not peculiar to § 1979, but rather which concern the *Hurn* doctrine.